

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

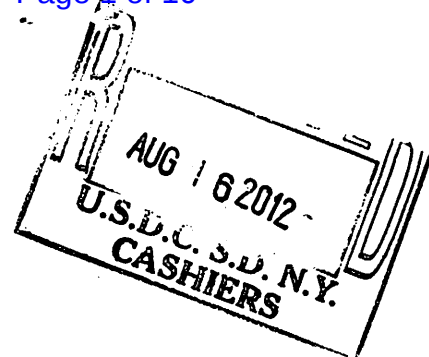
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RAMON SKERRITT,

Plaintiff,

-against-

CITY OF NEW YORK; Detective CHRISTOS DEFTEREOS, Shield No. 1081; Detective Kenneth Baker, Shield No. 5651; Detective Rosa E. Gonzalez-Noa, Shield No. 1999; and JOHN and JANE DOES 3 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.
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**FIRST AMENDED
COMPLAINT**

12 CV 2609 (GBD)

Jury Trial Demanded

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

5. This Court has supplemental jurisdiction over the New York State claims pursuant to 28 U.S.C. § 1367.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action.

PARTIES

7. Plaintiff Ramon Skerritt (“plaintiff” or “Mr. Skerritt”) is a resident of Bronx County in the City and State of New York.

8. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

9. Defendant Detective Christos Deftereos, Shield No. 1081 (“Deftereos”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Deftereos is sued in his individual and official capacities.

10. Defendant Detective Kenneth Baker, Shield No. 5651 (“Baker”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Baker is sued in his individual and official capacities.

11. Defendant Detective Rosa E. Gonzalez-Noa, Shield No. 1999 (“Gonzalez-Noa”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Gonzalez-Noa is sued in her individual and official capacities.

12. At all times relevant defendants John and Jane Does 3 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 3 through 10.

13. At all times relevant herein, defendants John and Jane Does 3 through 10 were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John and Jane Does 3 through 10 are sued in their individual and official capacities.

14. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

15. At approximately 4:00 p.m. on May 3, 2011 Plaintiff was lawfully present in the vicinity of Cambridge Road and Creston Avenue in Bronx, New York.

16. Plaintiff was on his way to the grocery store when one of the defendant officers came upon him and patted him on the shoulder.

17. The officer lacked reasonable suspicion to stop plaintiff.

18. The officer then threw plaintiff against a car and began to search him.

19. Plaintiff objected to the search, and asked for the officer's name and badge number.

20. The officer grabbed plaintiff by the hands and placed him under arrest.

21. At the time, plaintiff was walking with a cane, which was taken from him when he was arrested.

22. When plaintiff asked the officer what he was being charged with, the officer responded, in sum and substance: "don't worry about it."

23. Plaintiff was placed into the back of the police van.

24. At one point, the van came to a halt and the defendant officers removed plaintiff from the van, twisted his arm and threatened him.

25. Plaintiff told the officers that he had screws in his spine, the result of a prior surgery, but the officers responded, in sum and substance: "...if one person goes to the hospital, we all go to the hospital."

26. Plaintiff was then taken to a police precinct.

27. After being held at the precinct for some time, plaintiff was brought to Bronx Central Booking.

28. The officers falsely informed employees of the Bronx County District Attorney's Office that Plaintiff had committed the offenses of Assault and Resisting Arrest.

29. At approximately 9:00 p.m. on May 4, 2011, plaintiff was arraigned in Bronx County Criminal Court, where he was released on his own recognizance, approximately 29 hours after his arrest.

30. On or about December 3, 2011, plaintiff's criminal charges were dismissed.

31. Within ninety days after the claim alleged in this Complaint arose, a written notice of claim was served upon defendants at the Comptroller's office at 1 Centre Street, New York, New York.

32. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

33. This action has been commenced within one year and ninety days after the happening of the events upon which the claims are based.

34. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

FIRST CLAIM
Unlawful Stop and Search

35. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

36. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

37. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

SECOND CLAIM
False Arrest

38. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

39. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

40. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

THIRD CLAIM
Malicious Prosecution

41. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

42. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

43. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

44. As a direct and proximate result of defendants' unlawful actions, plaintiff has suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

FOURTH CLAIM
State Law Malicious Prosecution

45. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

46. By their conduct, as described herein, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

47. Defendants maliciously commenced criminal proceeding against plaintiff, charging him with various crimes. Defendants falsely and without probable cause charged plaintiff with violations of the laws of the State of New York.

48. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

49. All charges were terminated in plaintiff's favor.

50. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FIFTH CLAIM
Unreasonable Force

52. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

53. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

54. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SIXTH CLAIM
Failure to Intervene

55. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

56. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

57. Accordingly, the defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

58. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

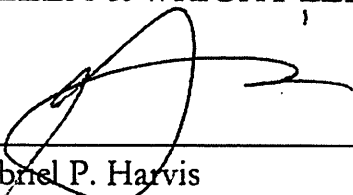
PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

DATED: August 16, 2012
New York, New York

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